

**MEMORANDUM OF UNDERSTANDING
BETWEEN
THE CITY OF CHEYENNE AND ARTS CHEYENNE**

This Memorandum of Understanding (MOU) is by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming (City), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, Arts Cheyenne, a Wyoming nonprofit corporation, P.O. Box 247, Cheyenne, WY 82003, hereinafter known as the "Organization." The City and the Organization are collectively referred to as "Party" or "Parties."

WHEREAS, the City recognizes that art, including public art, is important to Cheyenne's quality of life. This recognition is embodied in Title 12, Sections 12.24 of the Cheyenne Municipal Code. The City also recognizes that it can assist in adding value to the community through the acquisition, exhibition, and maintenance of public art;

WHEREAS, through ordinance, the City has established the Art in Public Places Program to:

1. Enrich the public environment for both residents and visitors;
2. Increase public access to works of art and promote understanding and awareness of the visual arts in the public environment;
3. Promote a variety of artistic expressions in the community;
4. Contribute to the community's civic pride in its cultural diversity;
5. Support visual art;

WHEREAS, the Organization's purpose is to promote creativity and artistic expression in the community. The Organization recognizes that art, including public art, can represent the community's cultural persona and improve Cheyenne's livability;

WHEREAS, the City and the Organization are devoted to improving the community

through public art initiatives, cultural planning, and cultural programming.

NOW, THEREFORE, the Parties agree as follows:

1. **Purpose.** The purpose of this MOU is to renew cooperative interaction between the City and the Organization, to define strategic and tactical responsibilities for art-based initiatives between the Parties, and to continue endorsement of the Organization as the official Local Arts Agency for the City.

2. **Term.** This MOU shall commence on the date last executed by the duly authorized representatives of the parties to this MOU and shall remain in full force until terminated as provided herein.

3. **Payments.** Neither Party shall have any obligation to make any payment of any kind to the other Party under this MOU (or if payment, describe terms of payment and method).

4. **Responsibilities of the Organization.** The Organization shall:

a. The Organization shall designate and manage a Public Art Committee as defined by Cheyenne Municipal Code Title 12, Chapter 12.24. As such, it shall:

1. Fulfill the goals set out in Section 12.24.010 of Municipal Code, as outlined above;

2. Recommend potential purchase of works of art to the City of Cheyenne governing body for final approval;

3. Develop, execute, and maintain a community-wide public art policy for the City of Cheyenne;

4. Seek matching funds, donations, and grants to assist in the operation of the Art in Public Places program;

b. The Organization shall develop and present a community-wide public art policy to the City of Cheyenne governing body by a date mutually agreed to by the Parties. As such it shall:

1. Manage an asset inventory of existing public art in the community;
2. Continue to evaluate comparable public art policies in similar communities;
3. Develop model agreements to manage public art design, installations, maintenance, and liability.

c. The Organization shall serve as the City's official Local Arts Agency, providing arts-related services and programs for the benefit of the community as a whole.

5. Responsibilities of the City. The City shall:

a. The City shall continue endorsement of the Organization as Cheyenne's official Local Arts Agency. As such, it will:

1. Renew through a Resolution through the Governing Body that the Organization is Cheyenne's official Local Arts Agency, serving as the Art in Public Places Committee, providing arts-related support, services, and programming for the benefit of the community as a whole.
2. Include the Organization in community development planning activities, meetings and decisions;
3. Designate a City governing body representative to serve on the Organization's Board of Directors;

b. The City may confer Art in Public Places related appropriations to the

Organization to be held in a restricted account for public art purposes. The amount of such transfer shall be determined by Resolution of the Governing Body. (Addendum A).

c. The City will provide annual appropriation funding to the Organization, upon submission of an appropriate budget request and updated contractual documents, to support arts and culture programs and initiatives that enhance the community and its quality of life. (Addendum A)

d. The City shall provide a contact within the Community Recreation and Events Department to coordinate with the Organization for assistance as required, including but not limited to developing guidelines for projects, submission of work products, and implementation of the requirements set forth in this MOU.

6. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed, and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply

with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification. The Organization agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Organization's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) Organization's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Organization, or its employees, in the performance of this Agreement. The Organization acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses

available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or

unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any Party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

7. Signatures. In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and

conditions of this MOU.

City of Cheyenne

Date
(SEAL)
Attest:

By:

Patrick Collins, Mayor

Kristina F. Jones, City Clerk

Arts Cheyenne

Date

By:

Mike Morris
Board President

ADDENDUM A

As of this year, Arts Cheyenne identified more than 400 existing public art pieces and installations in Cheyenne and Laramie County, including the Big Boots, bronzes, murals, utility boxes, and other works of art. These pieces include those owned by the City of Cheyenne, by quasi-governmental organizations, and by private businesses in public settings.

About 50% of those installations have been catalogued and stored in the Cheyenne/Laramie County Public Art Inventory database. The existing Public Art Inventory is visible on the Arts Cheyenne website (artscheyenne.com). The remainder of this local public art inventory will be catalogued in FY2022/23.

Arts Cheyenne and its partnership with other entities creating public art is providing a clearer picture of Cheyenne & Laramie County existing public art management/maintenance and future installations.

For the City of Cheyenne's 2023/24 Fiscal Year, Arts Cheyenne requests a \$50,000 appropriation supporting its public artwork. This work includes:

- *completing the Cheyenne/Laramie County Public Art Inventory*
- *managing the work of the Public Art Committee to oversee Cheyenne/Laramie County public art activities*
- *fundraising for future public art installations*

This appropriation would be earmarked to the following purposes:

- Management & Public Art Activities - \$25,000 (*Unrestricted*)
- Existing Public Maintenance/Repairs - \$10,000 (*Restricted to Purpose*)
- Support of New Public Art - \$15,000 (*Restricted to Purpose*)

Arts Cheyenne and the Public Arts Committee are working to expand public art's influence on Cheyenne and Laramie County's quality-of-life and to enhance its attractiveness to residents and visitors. The City of Cheyenne's financial support will help make that process successful.

Arts Cheyenne

Art in Public Places

2023-24 P&L

REVENUE		
City of Cheyenne 2023-24 Appropriation		\$ 50,000.00
Total		\$ 50,000.00
EXPENSE		
Emerging Artist Initiative/Cheyenne Creativity Center		\$ 5,000.00
Public Art Maintenance (Restricted to Purpose)		\$ 10,000.00
Public Art Installation (Restricted to Purpose)		\$ 15,000.00
Art in Public Places Asset Inventory Software		\$ 600.00
Art in Public Places Management		\$ 19,400.00
Total		\$ 50,000.00
	Balance	\$ 0.00